

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD.,
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD. AND YANG MING
MARINE TRANSPORT CORPORATION

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen”), and Yang Ming Marine Transport Corporation (“Yang Ming” and, with Evergreen, the “Respondents”) (NBG, together with Respondents, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report (“JSR”) and proposed discovery schedule:

Complainant served its initial disclosures as required by 46 C.F.R. § 502.141(b) as of February 10, 2025. Respondents served their respective initial disclosures on January 23, 2026. On January 16, 2026 the Presiding Officer issued an Order to Resubmit Proposed Discovery Schedule (the “Order”), requesting the Parties shorten the proposed schedule. The Parties propose the below schedule, which provides for close of discovery by July 1, 2026 as requested in the Order:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 2, 2026
Parties to serve objections and initial responses to initial RFPs	February 20, 2026
Parties to serve objections and initial responses to initial interrogatories	February 20, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	February 27, 2026
Parties to File Joint Status Report regarding document review and productions	March 18, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	April 1, 2026 ¹
Complete depositions of fact witnesses	May 18, 2026 ²
Last day to serve interrogatories, requests for admission, and RFPs	June 1, 2026
Disclosure of initial expert reports, if any	May 29, 2026
Disclosure of rebuttal expert reports, if any	June 19, 2026
Complete expert depositions	July 1, 2026
Close of discovery	July 1, 2026

¹ As outlined by the Parties in the first JSR submission, and in accordance with the Presiding Officer’s January 16, 2026 Order regarding scheduling, the Parties have suggested a further JSR two weeks in advance of the proposed substantial completion date to apprise the Presiding Officer of document review and production efforts and volumes of documents at issue, and will work closely together regarding the use of written discovery and stipulations to limit where possible voluminous document review. The Parties anticipate making further requests for additional time, if necessary, as of the submission of the JSR on March 18, 2026.

² The Parties note that should discovery in the three proceedings brought by Complainant proceed on the same discovery timeframe, that each of Complainant’s former-employee deponents may need to be deposed on more than one day during the deposition time frame by the various respondents, necessitating additional time to take depositions across now-severed cases.

Complainant's initial brief, proposed findings of fact, and appendix	August 12, 2026
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	September 23, 2026
Complainant's reply and responses to proposed findings of fact	October 21, 2026

Dated: January 23, 2026

Respectfully submitted,

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